

Kifisias Avenue 1-3, 11523 Athens

Tel: 210 6475 600 • E: contact@dpa.gr • www.dpa.gr

Athens, 24-09-2024

Protocol No.: 2585

Decision of the President of the Authority 29/2024

(Single-Member Body)

The President of the Authority, as a single-member body under Article 17 paragraph 1 of Law 4624/2019 (Government Gazette A' 137), within the framework of the powers provided in Articles 4 paragraph 3 and 10 paragraph 4 of the Operating Regulation of the Authority (Government Gazette B' 879/25.02.2022) and the powers provided in Article 15 paragraph 8 of Law 4624/2019 in conjunction with Article 58 paragraph 2 of Regulation (EU) 2016/679 (GDPR), examined the case referred to below in the background of this decision.

The Authority took into account the following:

1. With the complaint No. G/EIS/3240/03-05-2023 submitted to the Authority by A (hereinafter "the complainant") against B and C (hereinafter "the respondents"), the complainant alleges a violation of the provisions of the legislation on the protection of personal data. Specifically, according to the complaint, the respondents have installed a total of eight (8) surveillance cameras at their residence, two of which (the cameras numbered 3 and 8) capture images from the veranda and balcony of the neighboring residence belonging to the complainant and the public road. Additionally, the complainant, in a request to the respondents via email on 24-03-2023, asked them to provide information regarding the installed video surveillance system to which he expressed his opposition, and to grant him a copy of all video and photographic material concerning the continuous recording of the complainant. According to the aforementioned complaint, the respondents isolated snapshots with photos and videos depicting the complainant, which they used in legal disputes with the complainant. With the supplementary document No. G/EIS/4987/05-07-2023, the complainant sent to the Authority video material showing that the above video surveillance system captures images from the municipal road and neighboring residences.
2. The Authority, following document No. G/EXE/1748/07-07-2023, in which it requested clarifications from the respondents regarding the complaint, received in response document No. G/EIS/5679/02-08-2023, in which the respondents claim that the sole data controller is the exclusive owner and manager of the video surveillance system, namely one of the two respondents (B, hereinafter "respondent A"). According to his response, respondent A, prompted by incidents of burglary and theft at his residence, installed a video surveillance system consisting of a total of eight (8) cameras, six (6) of which monitor the interior of his residence and two (2) monitor the perimeter of the front of his residence on the public road, which are fixed and do not have the capability of rotation or focusing. The two aforementioned external cameras are installed on the outer part of the front walls of his residence facing the aforementioned public road. Additionally, to inform passing citizens about the video surveillance system, respondent A has placed a total of four (4) clearly visible signs. Furthermore, according to his response, respondent A did not install a recording device with the initial installation of the video surveillance system. The recording device was installed after the permanent installation of the respondents in the aforementioned residence and has a recording duration of a total of ten (10) days. Additionally, in his above response, respondent A admits that in order to have full coverage of the front section of his residence, the recording field of the aforementioned cameras, besides his private space, includes part of the public road in front of his residence as well as part of the complainant's residence located opposite his own. Beyond this, he mentions that he had referred to video material concerning an incident of an explosion, where it was found that the complainant was depicted as responsible for the aforementioned incident on the public road, which he isolated to use in a legal dispute. Furthermore, other snapshots were isolated and used as evidence in a legal dispute

between the complainant and the wife of respondent A.

3. Subsequently, the President of the Authority as a single-member body, on 25/08/2024, examined the above submissions made by the complainant and the respondents.

CONSIDERED IN ACCORDANCE WITH THE LAW

1. The image of a person collected through the use of a video surveillance system constitutes personal data, to the extent that it allows for the identification of the specific natural person directly or indirectly, while the capture or recording of the image which is stored and maintained in a continuous recording mechanism,

1 CJEU C-212/13 Rynes judgment para. 22, CJEU C-345/17 Sergejs Buivids judgment para. 31, CJEU C-708/18 TK v. M5A judgment para. 35.

4

For example, on a system hard drive, constitutes automated data processing. According to the definition in Article 4, paragraph 1 of the General Data Protection Regulation (Regulation 2016/679 of the European Parliament and of the Council, hereinafter GDPR), personal data is defined as "any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, psychological, economic, cultural, or social identity of that natural person." Therefore, the identification of a person through visual material can be carried out based on their appearance or other specific characteristics.

2. The installation and operation of video surveillance systems that capture or record images or sounds through the collection, retention, storage, access, and transmission of personal data, even from public spaces, constitute, as individual acts of processing, an interference with the individual rights to respect for private life under Articles 9 of the Constitution, 7 of the Charter of Fundamental Rights of the European Union (CFREU), and 8 of the European Convention on Human Rights (ECHR), as well as the protection of personal data under Articles 9A of the Constitution, 8 of the ECHR, and 8 of the CFREU.

3. The installation and operation of a video surveillance system is lawful, provided that, in principle, the cumulative conditions of Articles 5 (general principles) and 6 (lawful basis) of the GDPR are met. The European Data Protection Board issued Guidelines 3/2019 regarding the processing of personal data through video recording devices. This text provides detailed guidance on how the GDPR applies in relation to the use of cameras for various purposes. Furthermore, the provisions of Directive 1/2011 of the Authority regarding the use of video surveillance systems for the purpose of protecting persons and property must be considered in conjunction with the aforementioned provisions of the GDPR. The relevant obligation to demonstrate the legality lies with the data controller, in accordance with the principle of accountability, within the framework of compliance and documentation, which must take place prior to the installation and operation of the system (see also Decision 43/2019 of the Authority).

4. An exclusively personal or household activity is understood to refer to that which pertains to the private sphere of action of an individual or a family, meaning that it does not fall within their professional and/or commercial activity and does not aim at or result in the systematic transmission or dissemination of data to third parties, as is the case when audiovisual material collected is posted online or published in newspapers or submitted to competent authorities. Specifically, if the area monitored by the cameras of a video surveillance system installed in a private residence includes only private spaces, then such processing is considered a household activity (see Recital 18 of the GDPR and Article 3, paragraph 2 of Directive 1/2011 of the Authority). Conversely, the capture and processing of images or sounds with a video surveillance system installed in a private residence is not considered an exclusively personal or household activity when the camera's field of view includes external public or shared spaces.

6

spaces or spaces belonging to properties of others, in which case the principles of personal data protection apply according to the case law of the Court of Justice of the European Union.⁹

5.

Therefore, in cases where a private individual installs a video surveillance system in a non-private space, or in a private space but in a manner that oversees other spaces, such as the municipal road, where the use by third parties cannot be excluded, the use of the system infringes on the rights of individuals moving in that space, as their activities closely related to their personal lives may be monitored. It is, in fact, more difficult to substantiate the legality of such surveillance based on personal data protection rules. This infringement is particularly difficult to justify when it involves areas of third parties' homes or entryways to third parties' homes. Thus, the assessment of the legality of such processing must be conducted under the conditions of the GDPR, particularly based on the processing principles of Article 5. In most cases, the most appropriate legal basis for the processing may be Article 6(1)(f) of the GDPR.

6.

In this case, as evidenced by the file materials, the disputed cameras overseeing the municipal road and the neighboring house were installed for the purpose of protecting the persons and property of the complainants. The data controller for this system was the respondent A, who fully determined the purpose and means while acting primarily for the protection of the home of both complainants. The respondent A has processed and isolated material from the cameras, which has been used as evidence before the judicial authorities and in which the complainant is identifiable. The respondent does not provide evidence from which the legality of the installation of the system and the further transmission of the camera material to the judicial authorities can be substantiated, such as arguments that substantiate his superior legitimate interest in relation to the rights and freedoms of those being monitored. Based on the above, the respondents, despite the accountability obligation imposed on them under Article 5(2) of the GDPR, failed to prove the legality of the installation and operation of the video surveillance system, while their memorandum indicates that the video surveillance system also oversees areas beyond private ones, such as the municipal road and the neighboring house of the complainant. Therefore, the legality of the system's operation is not substantiated, as none of the legal bases of Article 6 of the GDPR can be applied, particularly paragraph 1(f) of that article, as the respondents do not demonstrate that their interests do not outweigh the interests and fundamental rights and freedoms of third parties, especially since the monitored areas are not limited to the absolutely necessary adjacent areas of the homes of the respondents (see Article 6(1)(a) of Directive 1/2011 of the Authority) and additionally include residential areas of third parties. Furthermore, the respondent A has placed four (4) clearly visible signs to inform the data subjects, which do not comply with the recommendations of the Authority¹⁰, while additionally, no second-level information is provided.

7.

The respondents in their memorandum refer to the private disputes they have with the complainant; however, the relevant claims fall outside the jurisdiction of the Authority and in any case do not cover the accountability and legality obligation for the installation and operation of the video surveillance system, and in any event, the possible existence of a legitimate purpose cannot remedy the violation of the principles of Article 5 of the GDPR and render the processing lawful, according to what is stated in paragraph 4 of this decision.

8.

Based on the above, the Authority deems it appropriate to exercise its corrective powers under Article 58(2)(f) of the GDPR concerning the established violations and to impose on the respondents the prohibition of processing through the video surveillance system. This decision must be executed within fifteen (15) days from the receipt of this document, and the respondents are obliged to inform the Authority accordingly.

FOR THESE REASONS

The Authority

Orders, pursuant to Article 58(2)(f) of the GDPR and Article 15(4)(c) of Law 4624/2019, that B and C

within fifteen (15) days from the receipt of this document:

- i.
Cease processing through the cameras that oversee the municipal road and the neighboring house,
- ii.
Inform the Authority regarding the execution of the above actions by providing the appropriate evidence,
- iii.
In the event that the above decide to operate the two cameras again, limiting themselves to the absolutely necessary space for the purpose they seek, to take the necessary actions to substantiate the legality of their installation and operation and to inform the Authority before the commencement of processing.
- iv.

THE PRESIDENT

Konstantinos Menoudakos

THE SECRETARY

Irini Papageorgopoulou